INTELLECTUAL PROPERTY POLICY

GANDHI INSTITUTE OF ENGINEERING AND TECHNOLOGY UNIVERSITY, ODISHA, GUNUPUR

(GIET UNIVERSITY)

(Established Vide Odisha Act 23 of 2018, Included by UGC, New Delhi, and Approved by AICTE, ICAR, INC, DSIR, New Delhi)

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1. PREAMBLE

Gandhi Institute of Engineering and Technology University, Odisha, Gunupur (GIET University) strives not only to be excellent in academics in higher education but also promotes research and dissemination of knowledge to the public for its good**.** GIET University has been activelyinvolved in basic and applied research and innovation since its inception**.**

The University was established with the objectives to facilitate and promote academics and research in emerging areas of education with focus on newfrontiers of technology, pharmacy, environmental studies, non-conventional energy sources and management studies, to achieve excellence in connected fields'.

In the process of developing and sharing information, there is an inherent need to foster innovation, creativity, and scholarly works in order to generate new and valuable materials, devices, methods, and other intellectual property. In the University, faculty members, research scholars and the students are actively engaged in research and development work of considerable importance. Such innovative research works may lead to development of intellectual property know-how, patents, copy-rights, designs, instruments, devices, processes, specimen, software and other inventions with potential for commercialization, with or without registration under various Acts issued by the government to protect intellectual property. The conception of intellectual property not only contributes to the professional development of the individuals involved, but also enhances the reputation of the University, provides educational opportunities for students and promotes public welfare. Particularly, commercial exploitation of intellectual property can provide significant socioeconomic benefits to the country. Therefore, The University supports and fosters research to make research findings available to the public while protecting the interests of scholars.

This IP Policy applies to all employees and students, regular or contractual staff of the University. Every member of the academic community, student, non-teaching and teaching staff alike, must be knowledgeable about intellectual property both to protect their own rights and to respect the rights of others. The IP Policy is intended to encourage a healthy atmosphere conducive to research and development through a generous system of rewards and incentives for the creation of intellectual property while at the same time

giving proper consideration to the economic rights and responsibilities of the University.

The strength of the University lies in its faculty, students, technical and administrative staff. This document is intended to introduce, regulate, and organize issues related to intellectual property within the University. It also reaffirms the University's commitment to scientific endeavors, academic excellence and the dissemination of knowledge. This policy is intended to spell out the responsibilities of the University and its employees and to establish a framework for ethical conduct.

2. STATEMENT OF INTENT

This policy:

- This Policy applies to any kind of research and development that requires registration under applicable Intellectual Property Regulations, where such research and development is conducted using the University's equipment, facilities, employee time, or proprietary information, or which relate directly to the University's activities.
- Enables the University to identify, protect, manage and commercially develop its intellectual property, for the benefit of the University and the community
- Sets out the entitlements and responsibilities of the University, faculties, staff, researchers, affiliates, students, and visitors in relation to intellectual property;
- Promotes a research and innovation culture that values translational research, technology transfer, and entrepreneurial endeavor;
- Provides the appropriate distribution of the proceeds of successfully commercialized intellectual property.

2.1 SCOPE OF THE IP POLICY

The IP Policy applies to potentially patentable inventions and discoveries, industrial designs, copyrightable materials such as books, publications, electronic courseware, computer programs, electronic circuits etc., protectable trademarks and trade secrets, which are developed using University equipment, supplies, facilities, employee time, or trade secret information, or which relate directly to the University's business, research or development. The University will encourage, recognize and protect all creative and scholarly works in form

of patents, copyrights, industrial designs, trademarks and trade secret, as the case may be, developed by its employees/students as a result of their research or employment. The University will protect the rights of the originator regarding intellectual property created by him as per legal framework of the land. However, the University, as a corporate body, shall share this right with inventors – staff, student or guest, in a just and fair manner.

This Policy applies to all the employees of the University and visitors using University facilities under the supervision of University staff and to all the students of the University including doctoral and Postdoctoral fellows.

It covers all intellectual property conceived, first reduced to practice, written, or otherwise produced by all faculty, staff, and students of the University whether using University resources or not. It also covers intellectual property created by part time students, employees and visitors using University funds, facilities or other resources.

3. INTELLECTUAL PROPERTY EXECUTIVE COMMITTEE (IPEC)

The University shall constitute an Intellectual Property Executive Committee

a) Registrar	CHAIRMAN
b) Dean of School Concerned	Member
c) Head of the Department Concerned	Member
d) Director IPR Cell	Convener

4. DUTIES OF INTELLECTUAL PROPERTY EXECUTIVE COMMITTEE (IPEC)

a) The IP Executive Committee convener will convene a meeting to evaluate all applications submitted through the IPR Cell/ R&D Department in order to determine whether the proposed Research & Development project is suitable for Intellectual Property Protection and whether such Intellectual Property should be owned by the University, the Employee(s), an Outside Sponsor, or a combination of these.

b) Based on the evaluation, the Committee shall recommend their observation for each such case along with associated costs and benefits to the Registrar for approval.

c) The Committee is in charge of carrying out the aforementioned Policy. Developing Policies and Procedures to supplement and interpret the ownership aspects of this

Policy, offering advice regarding ownership of particular works, recommending the release of Institutional Rights, and accepting an assignment of rights to the Institution from an inventor or creator of a work are just a few of the topics covered by this implementation.

d) The Committee convener is also in charge of overseeing the University's Patent Management and Licensing Program, which includes filing, prosecution, and maintenance of the University's patent portfolio.

e) Every patent application needs to be deposited in duplicate in the R&D Department.

5. OWNERSHIP

All patentable ideas conceived utilizing University facilities or generated through sponsored research by University Employees/Scholars shall be owned by the University. The Inventor shall assign to the University all such inventions, as well as any applications or patents originating from them. The Inventor shall execute assignment documents conveying to the University, all of the employee's interest in the invention owned by the University, and shall cooperate and help the University in all aspects of the Patent Application Process.

I. Obligations of originators/inventors

a. Originators/Inventor must ensure that appropriate records and documentation relevant to the intellectual property are created and adequately maintained.

b. If required by the Director, IP cell, an originator/inventor of intellectual property which is being developed must execute anydocument or do anything reasonably necessary to demonstrateor prove ownership, secure intellectual property protection or assist the University to develop the intellectual property.

c. Originators/inventor who propose to leave the University or who are no longer subject to the terms of an agreement with the University in relation to intellectual property, must ensure that allrecords and documents relevant to University owned intellectualproperty are provided to IP cell as soon as is practicable, and consistently with any direction from the Director, IP Cell.

II. (A) Ownership of Intellectual Property in Certain Circumstances

i. Where research has been sponsored by a private industry/ foundation or government agency and no prior agreement exists on sharing of intellectual property, licensing of patents shall be negotiated between the sponsor and the University.

ii. The intellectual property policies and guidelines of the University are subject to, and thus amended and superseded by the specific terms pertaining to intellectual property rights included in Central or State grants and contracts, or grants and contracts with NGO's or private sponsors.

iii. If the intellectual property has been generated as a work-for-hire, the employee or agency will retain the moral right to be identified as the creator of the intellectual property but right of commercialization rests only with the University.

II. (B) IP created from research conducted using University resources.

I. PATENTS

i. All inventions created by students, researchers, or faculty members (as part of their duties to the University) that are developed using the resources of the University or with a combination of funds, resources, and/or facilities of the University will typically be owned by the University.

ii. If the university finds that an invention was created by an individual or individuals on their own time, unrelated to their obligations to the university, and without the use of university resources, then ownership of the invention will pass to the individual(s) or inventor(s).

II. COPYRIGHT

i. The author(s) retains ownership of intellectual and academic works created using University resources, such as books, articles, student projects/dissertations/theses, lecture notes, and audio or video aids for lecturing.

ii. The University will usually own lecture videos or Massive Open Online Courses (MOOCs), films, plays, and musical works, as well as institutional materials such as course syllabi, curricula, exam questions, exam instructions, and papers/reports specifically commissioned by the University. wherever relevant, the author(s) retains moral rights.

III. TRADE MARKS

i. The University will normally own all trademarks affecting it. The University may formulate required guidelines for the use of the University's name through its trademark.

ii. If the University determines that the trade mark was created by an individual(s) on

his/her own time and unrelated to his/her responsibilities [e.g., the name of a company/start-up venture by the student(s)], the said individual(s) will normally be granted the right to the same.

IV. INDUSTRIAL DESIGNS

i. Any industrial designs created using university resources, or a combination of university funds, resources, and/or facilities, by students, researchers, or faculty (as part of their duties to the academic institution) will typically belong to the university.

ii. The industrial design will belong to the person(s) if the university finds that the person(s) created it on their own time, independently of their obligations to the university, and without using any university resources when it was conceived or put into practice.

III. ABANDONMENT

If the University, based on the recommendation of the IP Executive Committee, cannot or decides not to proceed to Patent and/or License an Invention, it shall reassign Ownership to the Inventors

6. ALLOCATION OF NET REVENUES

a. When discoveries/intellectual properties are owned in part by the University and in part by the Inventor, the University and the staff /Inventor shall enter into a written agreement apportioning the agreed share of the after costs revenues from the invention between the Inventor(s) and the University. The university, based on the recommendations of the research Committee on approval of Patent application for further processing the application fee will be shared among the Inventors and the University as follows:

Inventor(s)	University
0%	100%

b. Cost shall be defined as direct expenditures resulting from the pursuit, prosecution, and maintenance of Intellectual Property Rights and commercialization of the invention, plus the time cost of University resources such as Legal, Finance, Consulting, Marketing, and Licensing Departments, among others, involved in the filing and protection of such intellectual properties.

c. In the case of multiple inventors, those engaged must agree on an acceptable apportionment for the revenue share supplied to the Inventor; in the absence of a

formal agreement, the proceeds shall be distributed equally among the inventors.

d. Revenues granted to Inventor(s) persist throughout the invention's revenue generation phase, regardless of whether the Inventor(s) is still employed at the University, however if inventor leaves the university then he is bound to return the total expenses for utilizing the university infrastructure.

e. If the University decides not to pursue further development of the Intellectual Property, it will notify the inventor(s) and execute the relevant documents transferring all rights to the inventor(s), unless prohibited by prior written agreement.

7. ROYALTY INCOME SHARING

a. Commercialization:

i. For purposes of protection and commercialization of intellectual property on behalf of the University, patent, trademark or copyright coverage may be sought, or the property may be treated as proprietary information, technical know-how, or trade secret.

ii. The IPC may determine whether the University has a legal interest in the commercialization of the property. However, the University is not legally bound to commercialization of each property and the originator may not claim such right. It shall be in the sole discretion of the Director on advice of the IPC to determine commercialization of the property.

iii. In seeking and developing commercialization of intellectual property, the University shall be guided by the following principles:

a. A primary objective and responsibility of the University shall be to assure that the products of its intellectual activity are brought into the widest possible use for the general benefit of society.

b. Intellectual property should be treated as an asset and an appropriate return should be sought.

c. Active participation of the originator in all commercialization efforts shall be sought.

b. Royalty:

In case the University succeeds in commercialization of intellectual property for the creator and licenses rights to third parties in consultation with the creator(s), the revenue generated through royalty payments will be equitably shared among the creators and the University.

Inventor(s)	University
60%	40%

In case of multiple originators of an IP, all the originators will decide among themselves how to share the proceeds of an intellectual property. If they fail to arrive at a consensus, the IPC will analyze all available information and make a recommendation to the Director. The decision of the Director shall be binding and final.

If there are other legitimate claimants to the IP, they will be grouped either under "inventors" or "University". While sponsoring or supporting organization will get their share of the proceeds from "University" share, individuals (including visiting professionals) who contributed to the invention will receive their share from that of the originators.

8. PUBLICATION AND DISCLOSURE TO THIRD PARTIES

Premature publication, public use, or disclosure of an invention may compromise the University's or its assignee's rights to patent protection. Therefore, university strictly prohibits discloser of any information by the inventors before the patent applications have been applied. The following guidelines need to be followed.

i. Originators of University owned intellectual property must not:
    a. Use or disclose intellectual property owned by the University in any manner which would prejudice its protection, enforcement, commercialization or other development; contravene any legislative requirement;
    b. Apply for any form of protection for, commercialize or otherwise deal with the intellectual property in any manner inconsistent with the University's rights.

ii. Any publication, document and/or paper arising out of research activities shall be owned jointly by the university and researcher(s). The use of name, logo and/ or official emblem of the university shall not be done without prior written permission from the university.

iii. While the researcher may publish material relating to the research, it may be better for both the researcher and the university to jointly decide on any publication to be made.

9. LICENSE AGREEMENT, INFRINGEMENTS, DAMAGES, LIABILITY

a) As a matter of policy, University shall, in any contract between the licensee and university, shall seek indemnity from any legal proceedings including this, but not limited to manufacturing defects, production problems, design guarantee, up- gradationand debugging obligation.

b) University shall also ensure that staff has an indemnity clause built into the agreements with licensee(s) while transferringtechnology or copyrighted material to licensees.

c) The university shall retain the right to engage in or desist from ornot in any litigation concerning patent and license infringements.

10 CONFLICT OF INTEREST

The inventor(s) are required to disclose any conflict of interest or potential conflict of interest. If the inventor(s) and/or their immediate family have a stake ina licensee-company, then they are required to disclose the stake they and /or their immediate family have in the company, and license or an assignment of rights for a patent to the licensee - company in such circumstances, shall be subject to the approvalof the IP cell.

a. DISPUTE RESOLUTION

In case of any disputes between the University and the Inventor(s) regardingthe implementation of the IP policy, the inventor(s) may appeal to the IP Cell of the University. Efforts shall be taken to address the concerns of theinventor(s) by developing and instituting an arbitration mechanism and arrangement.

b. ARBITRATION

As a policy, all agreements shall be construed in accordance with and governed by the laws of India subject to the exclusive Jurisdiction of the courts and shall be governed by appropriate laws in India. Any dispute arising out of implementation or interpretation of this agreement shall be settled by mutual discussions and amicable settlement failing which the dispute shall be settled through the process of Board of Appeal as stipulated in Article 19, or if the parties fail to agree on the constitution of Board of Appeal, the matter shall be settled by arbitration proceedings conducted in accordance with the Arbitration and Conciliation Act, 1996. The arbitration shall be conducted by a sole arbitrator appointed mutually by the parties and the venue of such arbitral proceeding shall be in Gunupur.

c. BOARD OF APPEAL

In cases where the dispute between the University and the inventor is not resolved through a mutually agreeable solution within a period of 90 days after the date of appeal to the IP Cell of the University, Inventor may request a Board of Appeal to be constituted by the University (as per the arbitration mechanism referred in Article 18) which is chaired by an eminent external expert mutually agreed, a representative officer nominated by the Vice Chancellor and a member nominated by the inventor. The decision of the Board will be final and binding on the both the parties. The expenses will be shared equally by both the parties.

11. DISCLAIMER

The IP policy is intended solely as a guide. The language used in the handbook shall not be construed as creating a contract of employment between University and any of its employees, students or any external funding agency/ collaborator. University expressly retains the right to unilaterally modify or amend this code cum policy on the recommendation of the IP cell.